

Exhibit A Betsy Young Forfeiture Use Right

Exhibit A

Betsy Young Interest Forfeiture and Lifetime Use Right Agreement

Attached to and incorporated into the Non-Judicial Settlement Agreement
dated _____, 2026

Flanagan Family 321 Trust

Property: 321 Phillips Way, Ellsworth, ME 04605 (Branch Lake)

I. Parties

This Exhibit is entered into by:

Elizabeth (Betsy) Young ("Betsy")
Edward Young ("Edward"), son of Betsy
Jack Young ("Jack"), son of Betsy

and

John M. Flanagan, Successor Co-Trustee
Christopher J. Flanagan, Successor Co-Trustee

and acknowledged by all other parties to the Non-Judicial Settlement Agreement.

II. Background

Betsy is one of the five (5) children of Dorothy E. Flanagan, the Settlor of the Flanagan Family Trust.

Betsy, Edward, and Jack no longer wish to participate in the shared expenses of the Camp Property.

III. Forfeiture of Beneficial Interest

Betsy hereby voluntarily forfeits her entire beneficial interest in the Flanagan Family 321

This forfeiture includes:

- a. All rights to income distributions under Article IV.
- b. All beneficial interest in the Camp Property and any other Trust assets.
- c. All voting rights as a beneficiary, including the right to vote on the sale of the Camp Property (Article 5.5), the nomination or removal of Trustees (Article 10.2), and the approval of expenses and assessments (Article 5.3).
- d. All current and future claims to sale proceeds, equity, or distributions should the Property be sold in whole or in part.
- e. All rights to purchase the Camp Property or any subdivided part thereof under Article 5.6.

Edward and Jack likewise forfeit any current or future beneficial interest they may hold or

IV. Release from Financial Obligations

In consideration for the forfeiture described above, Betsy, Edward, and Jack are permanently

- a. Assessments for utilities, real property taxes, insurance, repairs, maintenance, and capital improvements under Article 5.3.
- b. Any outstanding or unpaid assessments as of the date of this Agreement.
- c. Any future assessments of any kind.

V. Lifetime Use Right

In further consideration for the forfeiture, Betsy, Edward, and Jack are granted the following

- a. One (1) aggregate week of summer use of the Camp Property per calendar year, for the remainder of their respective lifetimes.
- b. "Aggregate" means one (1) total week shared among the three of them, not one (1) week each.

- c. "Summer" shall mean the period from Memorial Day weekend through Labor Day weekend of each calendar year.
- d. Betsy, Edward, or Jack shall submit their requested dates to the Co-Trustees before May 1 of each year.
- e. The Co-Trustees will make every reasonable effort to accommodate the specific dates requested, in coordination with the schedules of all active beneficiaries.
- f. Final scheduling is subject to the sole discretion of the Co-Trustees.
- g. This use right is personal to Betsy, Edward, and Jack. It may not be assigned, transferred, sold, or conveyed to any other person.
- h. This use right does not include any right to invite guests beyond immediate family without prior approval of the Co-Trustees.
- i. During their week of use, Betsy, Edward, and Jack shall treat the Camp Property with reasonable care and leave it in the condition in which it was found.

VI. Termination of Use Right

The use right granted herein shall terminate:

- a. Upon the death of each individual (Betsy, Edward, or Jack) as to that individual only. The surviving individuals retain their portion of the aggregate week.
- b. Upon the death of the last surviving individual among Betsy, Edward, and Jack.
- c. The use right does not pass to the heirs, spouses, or descendants of Betsy, Edward, or Jack.

VII. Redistribution of Forfeited Interest

The beneficial interest formerly held by Betsy is redistributed equally to the four (4) remaining beneficiaries:

Mary Jean Foss branch (Jennifer Yommer and Martha Foss): 5%

John M. Flanagan: 5%

Jane E Birckhead branch (Joseph M Birckhead, after Diana E Birckhead forfeiture): 5%

Christopher J. Flanagan: 5%

This redistribution results in each of the four remaining branches holding a 25% beneficial

VIII. Re-Entry Provision

If Betsy, Edward, or Jack desire to return to being active beneficiaries of the Trust in the

a. Approval shall require a majority vote of the active beneficiaries at that time.

b. The terms of re-entry, including the percentage of beneficial interest to be restored, shall be determined by the active beneficiaries at the time of the vote.

c. Re-entry does not automatically restore the original 20% interest.

IX. Signatures

Elizabeth (Betsy) Young

Signature: _____

Date: _____

Address: _____

Edward Young

Signature: _____

Date: _____

Address: _____

Jack Young

Signature: _____

Date: _____

Address: _____

John M. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____

Christopher J. Flanagan, Successor Co-Trustee

Signature: _____

Date: _____